

Statement of Institutional Failure

*AC-2025-LON-004293 — Administrative Court — Permission Refused 11
March 2026 — Submitted to Parliament and the Lord Chancellor as a
record of public trust destroyed*

Case references

**BV20D01752 | AC-2025-LON-004293 | BL-2024-001217 | CA-2024-001342
CCR-6501-26-0100-000 | CRN 01/7340002/26**

Referred to:

Andy Slaughter MP, Chair, Justice Select Committee
Justice Select Committee — justicecom@parliament.uk
The Lord Chancellor — David Lammy KC MP

Nadia Zahmoul

Litigant in Person

27 March 2026

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TO WHOM THIS STATEMENT IS ADDRESSED

This statement is addressed to:

- **Andy Slaughter MP** — Chair, Justice Select Committee
- **Justice Select Committee** — justicecom@parliament.uk
- **The Lord Chancellor** — David Lammy KC MP

It is not addressed to the Administrative Court. The reasons for that are set out below. This statement is final. It is not an invitation to further correspondence. It does not seek a remedy from the institutions it addresses. It is a record.

PART 1 — WHAT THE ADMINISTRATIVE COURT DECIDED

On 11 March 2026, Mrs Justice Collins Rice refused permission for Judicial Review in AC-2025-LON-004293 (*Zahmoul v Secretary of State for Justice and HMCTS*). The application was certified Totally Without Merit. The claimant was ordered to pay the Defendants' costs of £3,125.50. The decision was made on the papers without an oral hearing.

A CPR 3.1(7) application to revoke that decision was sealed on 12 March 2026 — one day after the refusal. As at 27 March 2026, that application has received no response. It has been 15 days. There is no pending determination. There is nothing to wait for.

PART 2 — THREE IDENTIFIABLE ERRORS IN THE DECISION

The decision of 11 March 2026 refused permission on a characterisation of the claim that does not correspond to the claim that was actually made. Three errors are identifiable on the face of the order.

Error 1 — The Criminal Complaints Characterisation

What the order said:

> *"The Defendants have no arguable public law duty or function in relation to the criminal complaints."*

What the claim actually said:

The JR was not about the criminal complaints themselves. It was about HMCTS's administrative failure to log, preserve, and safeguard criminal evidence that was in its own administrative custody — specifically, the Imerman devices placed in escrow in 2021 under court supervision, never reviewed by any forensic expert, never the subject of any court order directing their fate. That is an administrative function. It is not a judicial act. It

is not protected by judicial immunity. The decision engaged with a simplified version of the claim and refused permission on that version.

Error 2 — The Equality Act / PSED Characterisation

What the order said:

> "The procedural matters she complains of appear to relate to judicial determinations, to which the administrative matters are ancillary, and accordingly not amenable to judicial review... The judicial determinations themselves are not amenable to judicial review based on alleged breaches of the Equality Act and PSED."

What the claim actually said:

The central claim was not that a judicial determination breached the Equality Act. It was that participation directions ceased on 28 February 2024 without any court order — in breach of FPR Rule 3A.9, which requires a court order with reasons before any participation direction can be revoked. There is no court order. There is no judicial act. There is nothing to attract judicial immunity. The decision conflated the administrative void with the judicial acts that surround it and refused permission on that conflation. The Claimant raised this distinction expressly and repeatedly in her pleadings.

Error 3 — The Delay and Continuing Breach Characterisation

What the order said:

> "The application is also very substantially out of time in relation to the matters complained of, and no explanation for the delay appears."

What the claim actually said:

This error has two distinct components. Both were addressed in documents before the court.

First — the delay. The explanation was in the bundle. On 20 June 2025 the Claimant was admitted to Chelsea and Westminster Hospital Emergency Department by ambulance (MRN 80718960). Droperidol 10mg IM was administered. The A&E record documents preoccupation with the courts. CLAAS (Central London Adult Autism Service, NHS) documented distress and court failures in writing on 17 June 2025. Dr Leigh Poyser, Consultant Psychiatrist, wrote to the court on 26 March 2025. The CLAAS diagnostic report of 1 July 2025 documents ongoing deterioration. The decision states no explanation appears. The explanation was before the court.

Second — and more fundamentally — the claim was never about historic events.

The Claimant's Master Submission for Reconsideration of 9 December 2025, filed before Collins Rice J made her decision, addressed this explicitly. It stated: the case is not that a single historic event was wrongful, but that there has been a continuous failure since February/March 2024 to identify, record and maintain appropriate participation measures and equality adjustments for an autistic and PTSD-vulnerable court user. The duties under

FPR Part 3A, PD 3AA, the Equality Act 2010, and the Public Sector Equality Duty are continuing duties. They were being breached on the day the JR was issued in November 2025. They were being breached on 11 March 2026 when permission was refused. They are being breached today. A continuing breach cannot be out of time. Collins Rice J had this argument in the bundle. The decision does not engage with it.

PART 3 — THE PATTERN THESE THREE ERRORS BELONG TO

These three errors are not isolated. They are the latest iteration of a pattern that runs across every proceeding in this case. In each instance, a public institution has received a claim, engaged with a simplified or mischaracterised version of it, and refused to determine the actual question raised.

Institution / Date	What was raised — and what was decided
MacDonald J — 18 Apr 2024	Participation directions ceased without order — breach of FPR Rule 3A.9. Judgment: 111 paragraphs, zero disability references. Autism-related witness box presentation characterised as " <i>obsession</i> " at paragraph 64. No engagement with Rule 3A.9.
MacDonald J — 24 May 2024	MPS order unenforced — 71 written requests. D50K enforcement application filed 2 May 2024 and paid. Costs order: " <i>litigation misconduct at the extreme end of the scale.</i> " No engagement with MPS enforcement application. Arrears retrospectively remitted without prior determination.
MacDonald J — 8 May 2025	Recusal application filed from 10 February 2025 — never determined. Dr Poyser's letter on the court file. Claimant filed urgent email to Court of Appeal 6 May 2025 stating she did not feel safe. Hearing proceeds. Adjournment refused. All applications dismissed TWM. No reference to disability or Dr Poyser's Findings B and C anywhere in the 68-paragraph judgment.
Court of Appeal — 10 Jun 2025	Recusal application — only institutional response received. Administrative officer redirects to High Court. No determination. No hearing. 33 days after first urgent email.
HMCTS — Oct-Nov 2025	Formal complaints re FPR Part 3A breach and Equality Act. Response: matters classified as " <i>judicial</i> " and therefore cannot be investigated administratively. Classification is false — the absence of a court order is by definition not a judicial act.
Collins Rice J — 11 Mar 2026	JR AC-2025-LON-004293. Three specific mischaracterisations set out in Part 2 above.

	Permission refused TWM on the papers. No oral hearing. CPR 3.1(7) revocation application sealed 12 March 2026 — 15 days unanswered.
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PART 4 — THE COMMON ORIGIN

These proceedings have been treated as fragmented across multiple courts and institutions. They are not fragmented. They have a single common origin.

The Single Causal Chain

- 1. Participation directions ceased 28 February 2024 without any court order —** breach of FPR Rule 3A.9.
- 2. MPS order ceased to be paid March 2024 —** 71 enforcement requests, none determined before the final order extinguished the arrears at paragraph 34 without prior hearing.
- 3. Both were live court orders. Both ceased without notice, without a hearing, and without giving the Claimant an opportunity to be heard.** This is not two failures. It is one failure expressed twice.
- 4. The draft final order and costs order were made without the Claimant's participation —** structurally excluded by the combined effect of those two failures.
- 5. The final order of 24 May 2024 triggered the Detach repayment obligation** (BL-2024-001217, currently before Master Pester). The Detach proceedings are causally downstream of the family proceedings.
- 6. Three criminal referrals have been filed with the Metropolitan Police Service, Crown Prosecution Service, and National Crime Agency —** CCR-6501-26-0100-000; CRN 01/7340002/26 — covering perjury, fraud on the court, misconduct in public office, disability suppression, and documented acute harm.
- 7. The JR was the only available enforcement mechanism for the Part 3A failure.** It has been refused on a mischaracterisation. The CPR 3.1(7) revocation application is unanswered at day 15.

PART 5 — WHY THIS STATEMENT IS NOT ADDRESSED TO THE COURT

The obligation between a citizen and a court is not unconditional. It is founded on procedural integrity, institutional honesty, and genuine engagement with the claim actually made.

When a court refuses permission on a mischaracterisation of the claim, certifies it Totally Without Merit, imposes a costs order against a disabled litigant in person, and does so

without an oral hearing, it has not discharged its function. It has produced a document that bears the form of a judicial decision but not its substance.

Sending this statement to the Administrative Court would be sending it to the institution whose conduct it documents. It would be treated as further litigation correspondence and filed without engagement. That is not a cynical assumption — it is what the evidence shows has happened at every prior stage.

This statement is therefore addressed to Parliament and to the Lord Chancellor because they are the only institutions with the authority and the obligation to hold the court system to account. The Justice Committee holds the Ministry of Justice to account for the administration of justice. The Lord Chancellor holds constitutional responsibility for the rule of law and the independence and integrity of the courts.

What This Statement Asks For

It asks for nothing that requires the court's cooperation. It asks for three things only:

- 1. That this record be placed in the Justice Committee's written evidence file as a fourth submission, following submissions of 13 March, 20 March, and 27 March 2026.
- 2. That the Lord Chancellor consider whether the pattern documented here — claim made, mischaracterisation produced, permission refused, costs ordered, revocation application unanswered — is consistent with the rule of law and the constitutional obligations of the court system to disabled litigants in person.
- 3. That the Written Parliamentary Question proposed in the briefing letter of 27 March 2026 be tabled. It asks whether a court order with reasons is required before a participation direction can be revoked under FPR Rule 3A.9. The answer to that question is in the statute. The only remaining question is whether Parliament will put it on the record.

PART 6 — THE CRIMINAL REFERRAL RECORD

For the record, the following criminal referrals have been filed and are registered:

Date	Reference	Subject
20 Mar 2026	CCR-6501-26-0100-000 · CRN 01/7340002/26	Main referral — 244 pages — perjury (Perjury Act 1911 s.1), fraud on the court (Fraud Act 2006), misconduct in public office
23 Mar 2026	CCR-6501-26-0100-000 · CRN 01/7340002/26	Supplementary referral — exploitation of vulnerability and disability discrimination by the Chancery Court in BL-2024-001217
24 Mar 2026	CCR-6501-26-0100-000 · CRN	Recusal referral — recusal

	01/7340002/26	application filed from 10 February 2025, never determined. Hearing 8 May 2025 proceeds. A&E admission 20 June 2025 documented by independent NHS clinicians.
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THIS STATEMENT IS FINAL

It is not a pleading. It is not an application. It is not an invitation to further correspondence from any court or government body.

It is a record. It documents what happened, what was decided, and what those decisions mean for public trust in the administration of justice. It is submitted to Parliament because Parliament is the institution with both the authority and the obligation to hold those failures to account.

The Claimant has exhausted every available legal route. The JR is refused. The revocation application is unanswered. The criminal referral is registered. The parliamentary track is engaged. There is nothing left to add.

Nadia Zahmoul — Litigant in Person

nadia@rosekross.com · +44 7913 328 615 · 27 March 2026

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Criminal referrals: CCR-6501-26-0100-000 · CRN 01/7340002/26

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